



SPONSOR: Rep. Bolden & Sen. Hoffner
Reps. K. Johnson, K. Williams, Harris

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 206

AN ACT PROPOSING AN AMENDMENT TO ARTICLE II AND ARTICLE III OF THE DELAWARE CONSTITUTION RELATING TO LIMITATIONS ON ELECTED OFFICIALS RUNNING FOR A DIFFERENT ELECTED POSITION.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE (Two-thirds of all members elected to each house thereof concurring therein):

1 Section 1. Amend Article II of the Delaware Constitution by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 14A. Candidates for election; members of the General Assembly.

4 A member of the House of Representatives shall resign as a member of the House of Representatives before being
5 eligible as a candidate for a different elected office. A member of the Senate shall resign as a member of the Senate before
6 being eligible as a candidate for a different elected office. Elected office includes the office of the Governor, the
7 Lieutenant-Governor, the General Assembly, and any other state, county, or municipal position that is selected by voters in
8 an election in this State.

9 Section 2. Amend Article III of the Delaware Constitution by making deletions as shown by strike through and
10 insertions as shown by underline as follows:

11 § 11A. Candidates for election.

12 A person holding elected office within the State, other than the Governor or Lieutenant-Governor, shall resign
13 from that elected office before being eligible as a candidate for a different elected office. Elected office includes, the
14 General Assembly, and any other state, county, or municipal position that is selected by voters in an election in this State.

SYNOPSIS

This Act is the first leg of a constitutional amendment that requires a person holding elected office to resign from office before being eligible as a candidate for a different elected office. Elected office includes the office of the Governor, the Lieutenant-Governor, the General Assembly, and any other state, county, or municipal position that is selected by voters in an election in this State. The Governor and Lieutenant-Governor, however, are not required to resign from office should they run for a different elected office.

This Act requires a greater than majority vote for passage because § 1 of Article XVI of the Delaware Constitution requires the affirmative vote of two-thirds of the members elected to each house of the General Assembly to amend the Delaware Constitution.